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File No.: EXP202307810
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RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) on May 31, 2023, filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

The complainant states that on October 7, 2022, they rented a property from the respondent, without being informed that a surveillance camera was installed inside the property, specifically in the living room, which affects their privacy, also noting that said camera is not properly signposted with the required informational signs for the monitored area.

They provide a copy of the rental contract for the property, where no information about the camera appears, images of the camera, and a burofax sent to the respondent by the complainant.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on June 7, 2023, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was duly received, as evidenced by the acknowledgment of receipt in the file.

THIRD: The respondent responded to the transfer on June 29, 2023, emphasizing that the tenants were aware of the presence of the security devices, confirming their presence (in the living room and the access area to the property).

They provide a copy of the contract signed between the parties in accordance with the provisions of the LAU (Law 29/1994, November 24, on Leases) dated October 7, 2022, for analysis by this Agency. Additionally, they provide a responsible declaration in the model of this organization stating that the "installed cameras are photo sensors."

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FOURTH: On August 31, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: On February 7, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 6 of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: On February 22, 2024, this agency received a written statement from the respondent regarding the Initiation Agreement, stating the following concerning the described facts:

First. In the aforementioned property, there are no security cameras installed, but rather 2 photo detectors or photo volumetric devices, attaching contract number ***CONTRATO.1, dated August 29, 2022, signed by the undersigned as the owner of the property, and a representative of the company Securitas Direct España S.A.U., which includes the NIF and email of the person responsible for the video surveillance system. (DOCUMENT NUMBER 1).

Second. The aforementioned property has been rented since October 7, 2022, having been visited on the 5th of the same month at 6:15 PM by the tenant. Due to the insistence and urgency expressed in

wanting to occupy the property for that same weekend, the contract was drafted as quickly as possible. A signed rental contract between the owner, the undersigned, of the property and the tenants C.C.C. and A.A.A. is attached, where clause two literally states: “...

- That parties A.A.A. and C.C.C., being fully aware of the situation, surface, distribution, characteristics, and conditions of the property, are interested in its rental, declaring to receive it in perfect condition for the use it is intended for, proceeding by this document to formalize said rental.
- The property is an apartment consisting of a bedroom, living room with access to a terrace, bathroom, and kitchen. The property is furnished, and the kitchen has appliances. The lack, damage, or loss of any of the items will entitle the landlord to demand the appropriate repair, replacement, or compensation for the damages caused, at the landlord's discretion.
- The tenant declares to know and accept the condition of the property, receiving it in perfect state of conservation and with full habitability and suitability to serve the purpose of a habitual residence agreed upon in this contract...” (DOCUMENT NUMBER 2).

Third. - In this regard, it should be mentioned that the existing photo detectors or photo volumetric devices, one in the living room of the property and another at the entrance door to the property, are not hidden and are perfectly visible to the tenants. It is entirely unfeasible for the tenants to claim ignorance of the existence of the security system installed in the home, as the very...

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3/15

The security company installed an informational sign regarding the existence of an Alarm notice to the Police. Furthermore, the Community of Property Owners has contracted the same security company, ensuring that the existing signs comply with regulations: yellow in color, with information in black and the responsible party for data processing. Photographs are attached (DOCUMENT NUMBER 3).

Fourth. - At the time of signing the contract and handing over the keys to the property, the undersigned informed the tenants of the existence of the security system installed in the property and provided the necessary explanations for its operation, delivering the User Manual containing all the information about the installed devices at the time of signing the lease agreement. Anecdotally, C.C.C. chose the pink smart remote as it was her favorite, indicating that during weekdays she would reside alone in the apartment, showing enthusiasm for the existence of the security system, not only because her partner, A.A.A., would only inhabit the property on weekends since his usual residence is in Córdoba where he manages his own business, but also because she had a pet, specifically a cat, and thus could keep an eye on it. WhatsApp conversations are attached (DOCUMENT NUMBER 4 and 5) with the tenant (...)

Fifth. From the first day of leasing the property, the undersigned has not accessed the data provided by the security system installed by Securitas Direct España S.A.U., serving this as a responsible declaration for the relevant purposes. Referring to the transcribed WhatsApp, it has been impossible for me to meet with a technician from Securitas Direct for the information course on the operation of the security system, due to the fact that the tenants have prevented me from entering my property, specifically the tenant who wanted her partner to be present, while I explained that it had to be during the week since the company does not operate on weekends for such arrangements.

Sixth. A technical report of the security system installed in the property has been requested from Securitas Direct España S.A.U., and I am awaiting its receipt. For months, they have been calling my mobile, sending text messages, and emails to remind me that, for the proper functioning of the security system, it is necessary for the alarm to receive a continuous current of 220V, which is not happening. I request the AEPD, that if before presenting these allegations, I have not received the requested Certificate from Securitas Direct, in which they would specify the exact date of inactivity of the contracted service, that you be the ones to request it. Emails and messages from the aforementioned company reminding me of the general conditions of the contract and the request for a power cut certificate are attached (DOCUMENTS 6 and 7).

REQUESTS: That this written statement of allegations and the arguments and documents accompanying it be considered as presented in due time and form, and that both be admitted for processing, and that they be taken into account by the competent authority when drafting the corresponding resolution proposal.

SIXTH. On 13/03/24, the instructor of the procedure agrees to request the installing company - Securitas Direct España S.A.U. - to clarify various issues.

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4/15

issues related to the presence of the devices installed for the clarification of the facts presented.

SEVENTH: On 05/04/24, a letter is received at this Agency from the entity—Securitas Direct España S.A.U—where the following is stated:

“FIRST-. A copy of the contract signed between the client and the installation company SECURITAS DIRECT ESPAÑA, S.A.U.

Attached as annex document no. 1 is a copy of contract no. ***CONTRATO.1 formalized between B.B.B. and Securitas Direct on August 29, 2022, for the provision of security services at the installation located at ***DIRECCION.1

SECOND-. My represented party is requested to inform whether there has been an “alarm trigger” at the residence subject to the installation of the system from October 2022 to the present date, providing or specifying this aspect in the attached report, as well as, in the affirmative case, whether the photo detection system was activated capturing images of the residents or, in the negative case, that no “alarm trigger” has been recorded during the indicated period.

Due to the different signals received at our Alarm Receiving Center (hereinafter, “CRA”) from the installation located at ***DIRECCION.2, between October 2022 and March 2024, the following historical record of incidents is registered:

THIRD.- Please inform whether the client has requested access to the images that the system may have obtained in case of an “alarm trigger” at any time during the previously mentioned date range. Users of the alarm system can autonomously make what we call “comfort mode” photo requests through the Securitas Direct application “My Verisure” whenever they deem appropriate, with no record of these in our CRA.

FOURTH-. Please confirm the status of “Data Controller” by the entity SECURITAS DIRECT ESPAÑA, S.A.U. and whether any images have been transferred to third parties as a result of a hypothetical “alarm trigger” at the residence in question.

As we inform our clients in the General Conditions of Contracting attached to the security service provision contract, Securitas Direct assumes the role of data controller for the management of video surveillance systems with access to images and/or sounds that may be captured by the devices as a result of alarm triggers generated by the installed security system, that is, when the user activates their alarm system to protect their installation.

In this regard, it is recorded in our systems that only images were viewed in the CRA during the following incident that occurred on 08/09/2022 (prior to October 22) (...).

FIFTH-. Any other aspect worthy of mention at the discretion of the entity SECURITAS DIRECT ESPAÑA, S.A.U.

As has been pointed out, since 22:02 hrs. on ***FECHA.1, communication with said system has been lost. From that moment, my company has repeatedly contacted B.B.B. to carry out a review of the alarm system. However, as we have been informed, they need to consult with the tenants regarding the date on which such a review can be conducted.

My represented party has attempted several times to confirm a date with the client, without success. Finally, on 20/04/2023, it is recorded that maintenance was rejected, informing that the installation is rented and they do not wish to use the alarm or transfer it to another installation.

Aside from the aforementioned, there are no other matters that my represented party wishes to bring

to the Agency's attention beyond what has already been discussed in this document.

EIGHTH: On 12/04/24, the installation entity—Securitas Direct—is again requested to clarify certain aspects of the installed system, which due to their technical nature required further explanations than those initially provided.

NINTH: On 22/04/24, a new clarifying letter is received from the entity responsible for the installation of the video surveillance system (Securitas Direct España) in the following terms:

“Therefore, in the event that said system is activated, if the detection devices detect unauthorized movement or activity within your installation, an alarm trigger would be launched that would be received in our CRA. (...).

As my represented party pointed out in its letter dated April 5, 2024, since no technician has been able to attend the installation after October 22, 2023, we do not know what may have happened for the system to be disconnected from that date, having only the following information provided verbally by the client: “that the tenant did not want the alarm and had it unplugged.” Therefore, with the system unplugged, it makes sense that it has not functioned since that date.

TENTH. On 27/06/24, a is issued proposing the filing of the procedure as it has not been demonstrated that the system subject to the complaint processes any data, as it is , nor has its operability been proven.

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6/15

ELEVENTH: Upon consulting the database of this AEPD on 07/16/24, no response has been received from the respondent, nor has any statement to that effect been made, with the proposal notified electronically to the same address.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the complaint dated 05/31/23, which states the following:

“installation of devices inside the rented dwelling considering that they are not properly signposted” (folio no. 1).

It is accompanied by a copy of the Burofax sent to the landlord in February 2023, requesting the removal of the devices, as well as a copy of the rental contract signed between the parties (Annex I).

Second. It is established that the main responsible party for the processing is Securitas Direct España S.A.U—according to the attached contract.

Third. It is established that the respondent is the owner of the property subject to the lease, which has a contract with the security company—Securitas Direct España S.A.U—with number ***CONTRACT.1 for the protection of the property, contract dated 08/29/22.

Fourth. It is established that there is an informational sign from the installing company warning that it is a video-monitored area, with a phone number and informing about the transfer of images to the State Security Forces and Corps.

The respondent provides a photograph of the sign installed at the main access door to the dwelling informing of the presence of an Alarm from Securitas Direct (Doc. no. 3 Annex I).

Fifth. It is established that the installed security system is not operational as “the power supply has been cut off.”

In relation to the above, we point out that this alarm system has been disconnected since 10:02 PM on the day ***DATE.1, meaning that our CRA has not received any signals from this alarm system since then.

Sixth. It is established that no images of the occupants of the property have been stored as the alarm system is disconnected and does not allow for its review.

LEGAL GROUNDS

I

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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

In the present case, we proceed to examine the complaint dated 05/31/23, through which the presence of a “video surveillance camera in the living room of the dwelling” is reported, considering that it affects their privacy, without being properly informed or signposted.

“That in the aforementioned dwelling there are video surveillance cameras, specifically in the living room (and whose use is unknown to this day)”—folio no. 1—.

In today’s society, we are witnessing the phenomenon of tourist apartments, as well as the proliferation of temporary or short-term rentals through various online platforms, which allow their owners to obtain an extra source of income or turn this phenomenon into a permanent source of income through the exploitation of several properties.

The current regulation is not uniform, nor does it follow a determined pattern, being in the hands of the Autonomous Communities the territorial legislation of the aforementioned phenomenon, leading to a diverse case law and sometimes not free from problems, given the evolution of the traditional concept of .

The constitutionally protected domicile, as the dwelling or room of the person, entails a close connection with their sphere of intimacy (e.g., STC 22/1984, legal basis 5 (also, SSTC 160/1991 and 50/1995, among others); since what is protected is not only a physical space but also what emanates from a natural person and their private sphere (STC 22/1984 and ATC 171/1989).

The issue presented becomes even more complicated when we encounter the installation of video surveillance cameras, both indoors and outdoors at access doors, either because they are an integral part of the security of the rented dwelling, or because they are a mechanism for controlling the entries/exits of the property, against owners who rent them.

C/ Jorge Juan, 6

The previous facts are concretized in the presence of some type of image capture device inside the dwelling subject to lease between the parties.

Instruction 1/2006, of November 8, from the Spanish Agency for Data Protection, regarding the processing of personal data for surveillance purposes through camera or video camera systems, in its Article 1, section 1 “in fine” states:

“The references contained in this Instruction to video cameras and cameras shall also be understood to refer to any analogous technical means and, in general, to any system that allows the treatments provided for herein.”

Consequently, photosensitive devices allow for the processing of images that are activated by movement, enabling the processing and storage of data, thus making current regulations applicable: GDPR and LOPDGDD.

Article 1546 of the Civil Code provides the following: “The lessor is called the one who is obliged to

grant the use of the thing, execute the work, or provide the service; and the lessee is the one who acquires the use of the thing or the right to the work or service that he is obliged to pay for.”

The GDPR maintains the principle that any processing of data must be supported by a legitimate basis.

On the other hand, although it is not explicitly stated, the legitimization on which the treatments are based must be documented and clearly identified, as it is deduced from some articles of the GDPR and the general principle of "active responsibility."

The bases for legitimization of processing under the GDPR are regulated in recitals 39 to 56 and in Article 6.1 of the Regulation, where we find the list of legitimizing bases for processing.

Article 6 of the GDPR “Lawfulness of processing” states that processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller; (...).

The presence of cameras inside the dwelling implies an encroachment on a space that ceases to be “exclusive” to the owner, becoming subject to enjoyment by a third party whose rights must be respected, including the right to privacy and the right to “protection of personal data.”

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9/15

Therefore, the “personal and domestic” scope in the capture of images from within the private home (Article 22.5 LOPDGDD) disappears when the use and enjoyment of the private dwelling is temporarily ceded to a third party, becoming a space reserved for the strictest personal and family intimacy, also protected by data protection regulations, which generally do not allow for the capture and processing of such data.

Furthermore, consideration (32) of the GDPR must be taken into account, as it states:

“Consent must be given by means of a clear affirmative act that reflects the data subject's free, specific, informed, and unambiguous indication of their wishes to accept the processing of personal data concerning them...”

In the present file, the responding party does not initially demonstrate in its allegations that the complaining party provided consent for the processing of data, nor that they were informed of the presence of the mentioned , in accordance with the provisions of both the GDPR and the LOPDGDD.

III

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to this Regulation. In Article 4.2 of the GDPR, the concept of “processing” of personal data is defined.

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of making available, alignment, combination, restriction, erasure or destruction;”

Images generated by a camera or video camera system are personal data, thus their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

IV

Article 18 of the Spanish Constitution contains multiple contents by protecting various rights, which, although inspired by the protection of privacy, offer important nuances.

"The law shall limit the use of information technology to guarantee the honor and personal and family intimacy of citizens and the full exercise of their rights."

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10/15

The inviolability of the home is linked to the right to privacy of individuals, as it protects the space where a person develops their intimacy shielded from indiscreet eyes. Consequently, it is logical that the Constitutional Court has given the term "home" a much broader meaning than that provided by the Civil Code.

For the High Court, the home is the space where an individual lives exercising their most intimate freedom, outside of social conventions, as well as any space suitable for that, whether eventually or permanently, to occur.

Specifically, the following are considered homes for constitutional purposes: second residences, vehicles or caravans, hotel rooms (STC 10/2002, of January 17), or the business domicile of legal entities, although in some of these cases with certain limitations derived from the specific characteristics of the accommodation. In contrast, the cells of inmates in penitentiary centers will not be considered homes (STC 11/2006).

For a violation of the right to be accepted, physical penetration is not necessary; it also includes actions carried out through visual or auditory devices (STC 22/1984, of February 17).

The right to privacy, let us remember, consists of guaranteeing the free development of each individual's private life, without "interference from third parties." The presence of interior cameras not only implies excessive control over the entries/exits of the resident and/or companions but also constitutes a "data processing" that is not justified in the present file.

In this regard, the Constitutional Court states in STC 22/1984 that the right to the inviolability of the home constitutes a true fundamental right of the person, established, as we have said, to guarantee this person's privacy within the space that the person themselves chooses, which must be characterized precisely by being exempt or immune to invasions or external aggressions from other individuals or public authority.

It is worth reflecting on other rulings—Contentious-Administrative Judgment No. 2923/2020, Superior Court of Justice of Catalonia, Contentious Chamber, Section 3, Rec 237/2019 of July 2, 2020—.

"As stated in STC 10/2002, of January 17 (FFJJ 5 and 6), cited by the Prosecutor and by the appellant in protection, and recalled later in STC 22/2003, of February 10, the constitutional norm that proclaims the inviolability of the home and the prohibition of home entry and searches (art. 18.2 CE), despite the autonomy that the Spanish Constitution recognizes to both rights, constitutes a manifestation of the preceding norm (art. 18.1 CE) that guarantees the fundamental right to personal and family privacy. Thus, if the right proclaimed in art. 18.1 CE aims to protect a reserved area of individuals' lives excluded from the knowledge of third parties, whether they are public authorities or private individuals, against their will, the right to home inviolability protects "a specific spatial area" since in it individuals exercise their rights."

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28001 – Madrid
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11/15

the most intimate freedom, free from any subjection to social uses and conventions, being the object of protection of this right both the physical space itself and what emanates from the person and their private sphere within it. Therefore, we have affirmed that the constitutional protection of the home is an instrumental protection, which defends the areas in which a person's private life develops.

Among other consequences, such instrumental character determines that the constitutional concept of home has a broader scope than the private legal or administrative legal concept of home and does not admit "reductionist conceptions" (see, among others, SSTC 94/1999, of May 31, FJ 5, and 10/2002, of

January 17, FJ 6 in fine). For this reason, we have stated in legal foundation 8 of the aforementioned STC 10/2002 that "the essential feature that defines the home for the purposes of the protection provided by art. 18.2 CE lies in its suitability to develop private life within it and its specific destination for such development, even if it is eventual. This means, firstly, that its destination or use constitutes the essential element for the delimitation of constitutionally protected spaces, so that, in principle, their location, physical configuration, whether movable or immovable, the existence or type of legal title that enables its use, or, finally, the intensity and periodicity with which private life is developed therein are irrelevant. Secondly, although the effective development of private life is the determining factor of the specific suitability for the space in which it develops to be considered a home, it does not necessarily follow that such suitability cannot be inferred from some of these features, or others, insofar as they represent objective characteristics according to which it is possible to delimit the spaces that, in general, can and usually are used to develop private life." Furthermore, "the very instrumental character of the constitutional protection of the home concerning the protection of personal and family intimacy requires that, regardless of the physical configuration of the space, its external signs reveal the clear will of its owner to exclude that space and the activities carried out therein from the knowledge and intrusions of third parties." From this, we drew the conclusion, when declaring the unconstitutionality of the provisions in art. 557 of the Criminal Procedure Law that "hotel rooms can constitute the home of their guests, since, in principle, they are suitable places, due to their own characteristics, for private life to develop therein, given that the usual destination of hotel rooms is to carry out activities that can be generically framed within private life" (*the bold and underlined text belongs to this entity).

V

On 05/04/24, a document was received from the entity Securitas Direct España S.A.U following a request for evidence made by the Instructor of the procedure.

The aforementioned entity confirms its status as for the processing by providing as an attached document a copy of the contract signed between the parties, in which the said security entity is responsible for "accessing the images and/or sounds that may be captured with the devices" present in the leased property.

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12/15

At the property in question, signs from the company Securitas Direct España S.A.U have been installed since the moment the rental contract was made between the parties, informing of the presence of two photo detectors that can be activated under certain circumstances, with .

From the moment prior to the rental agreement of the property, the parties were aware that the dwelling was protected by an alarm system from the aforementioned security company, which is evidenced by the WhatsApp messages submitted to the proceedings, as well as they had been informed that the activation of the system was a personal matter for the tenant.

Therefore, the issue of the alleged breach of Article 13 of the GDPR, for not having an informative sign, is dismissed as the sign from the installing company is recorded as , thus the party being claimed against is not responsible for not having images, making it clear the purpose of the processing and the number of the installing company to which the claiming parties have not addressed in any way.

VI

Regarding the main issue, the presence of video surveillance cameras inside the dwelling, which is the focus of the complaint submitted to this body, with alleged impact on the data of the tenants.

Both the party being claimed against and the installing company—Securitas Direct—do not deny the presence of what they qualify as , specifically two in the dwelling, one in the living room area and another in the entrance area of the dwelling, in both cases with the purpose of protecting the property in question.

Photo sensors (or motion sensors) are a type of technology used in security cameras that allow for data processing by obtaining photographs during activation, which means that the residents of the

dwelling are recorded at the moment of activation of these devices.

When these detectors sense intrusion (connected alarm system), the image capture device collects 3 photographs that will be sent by the alarm system to the Central Receiving Station (CRA) for verification of the alarm triggers received. That is to say, this is not a system for recording images with continuous recording cameras (CCTV).

As indicated in FJII of this resolution, such devices, to the extent that they can obtain images (personal data) through photographs, are considered affected by the current regulations on data protection.

The fact that their presence has not been reflected in the contractual document raises the issue of the property owner's interest in having security against potential thefts, an aspect that benefits the residents of the property themselves and, on the other hand, their freedom to consent to the presence of photo detectors that...

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13/15

may imply, in the case of , an unlawful intrusion into their privacy through the obtaining of frames (personal data) that are managed by a third party.

Article 1255 of the Civil Code states: "Contracting parties may establish the agreements, clauses, and conditions they deem appropriate, provided they are not contrary to laws, morality, or public order."

For its part, Article 6, paragraph 3 of LO 3/2018, December 5, states: "3. The execution of the contract may not be conditioned on the affected party consenting to the processing of personal data for purposes unrelated to the maintenance, development, or control of the contractual relationship."

In any contractual relationship, it is deemed essential that the parties are in a position of equality, so that the clauses must be negotiated, and it is not acceptable for them to be imposed by one of them.

This does not prevent our system from accepting adhesion contracts, understood as those whose clauses are drafted by one party and imposed on the other, without the latter having the possibility to negotiate them, but simply to accept them or not. In this type of contract, the freedom to contract is maintained, that is, to enter into it or not, but not contractual freedom, in the sense that both parties have negotiated and had the freedom to establish the clauses.

The essential aspect from the perspective of data protection is the operability of the system, given that it is not the responsibility of this body to assess the complex issue presented, among the interests involved, being a matter that would require a judicial pronouncement for analysis of the case presented.

Given that the disconnection of the system has been proven from the moment the rental contract began, as well as the willingness of the defendant to not activate it, it does not carry out any data processing, performing no function beyond mere decoration, so the fact of not having reflected it in the initial contractual document cannot be sanctioned, given that the defendant at the time of renting the property was aware of the presence of the alarm system and did not oppose acquiring it with the system installed at that time.

The remaining issue of "presence of devices" (photosensors) inside the property does not respond to a on the part of the defendant, given that they are installed as an additional protection for the property even before the contract; although what is essential for this body is that they are deactivated and that the principle of presumption of innocence of the defendant has not been undermined.

However, the above must take into account the limits between the right to privacy and the right to data protection with different guiding criteria in administrative or jurisdictional proceedings.

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14/15

Although both rights share the common objective of providing effective constitutional protection of

individual privacy, they have a distinct function, “which consequently implies that their object and content also differ” (STC of 30-11-2000).

VI

According to the above, after analyzing the evidence provided, it is concluded that the alarm system with motion detection inside the property has been since the moment of the rental contract signed between the parties, and therefore, no processing of data associated with the residents of the property has occurred, and thus, no infringement has been proven in the matter at hand.

The presence of signs informing placed by the installing company as a deterrent specifies the data controller as the entity itself—Securitas Direct—so it cannot be concluded that they were unaware that the property had a private protection system from the moment they inhabited the property.

Once the essential issues in the framework of data protection have been analyzed, the remaining issues fall within the framework of a civil contractual relationship, taking into account the provisions of Article 1255 of the Civil Code, and it should be specified as a general criterion the non-permissibility of video surveillance cameras inside rental properties, as well as the limitations within the framework of data protection regarding the introduction of abusive clauses contrary to the purpose of the contract, which is none other than the temporary use and enjoyment of a property by a third party, carrying out their daily activities free from intrusion by technological devices.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been proven,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of the present procedure as no administrative infringement has been proven in the matter at hand.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from

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15/15

counting from the day following the notification of this resolution or directly administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within a period of two months counting from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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